

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	28-07-2026 09:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	28-07-2026 09:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	30 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Education
विभाग का नाम/Department Name	Department Of School Education And Literacy
संगठन का नाम/Organisation Name	Navodaya Vidyalaya Samiti
कार्यालय का नाम/Office Name	Jawahar Navodaya Vidyalaya Fatehabad
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: jnvkk533@gmail.com
वस्तु श्रेणी /Item Category	Manpower Outsourcing Services - Minimum wage - Unskilled; Not Required; Others
अनुबंध अवधि /Contract Period	1 Year(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	245 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	7 Year (s)
इसी तरह की सेवाओं का पिछला आवश्यक अनुभव है/Past Experience of Similar Services required	Yes
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	6112944
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	100000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	14

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c).ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

PRINCIPAL

JAWAHAR NAVODAYA VIDYALAYA KHARA KHERI, FATEHABAD HARYANA

(Principal)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.

3. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any

purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

5. Past Experience of Similar Services: The bidder must have successfully executed/completed similar Services over the last three years i.e. the current financial year and the last three financial years(ending month of March prior to the bid opening): -

1. Three similar completed services costing not less than the amount equal to 40% (forty percent) of the estimated cost; or
2. Two similar completed services costing not less than the amount equal to 50% (fifty percent) of the estimated cost; or
3. One similar completed service costing not less than the amount equal to 80% (eighty percent) of the estimated cost.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Scope of work & Job description:[1783424512.pdf](#)

Buyer to upload undertaking that Minimum Wages indicated by him during Bid Creation are as per complied with The Code on Wages Act:[1783427717.pdf](#)

Manpower Outsourcing Services - Minimum Wage - Unskilled; Not Required; Others (25)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Skill Category	Unskilled
Educational Qualification	Not Required
Type of Function	Others
List of Profiles	Watchman, Sweeper, Matron, Care Taker, Mess Helper, Electrician cum Plumber
Specialization	Not Required
Post Graduation	Not Required
Specialization for PG	Not Applicable
Experience	0 to 3 Years
State	NA
Zipcode	NA
District	NA

विवरण/ Specification	मूल्य/ Values
Is the Geographical presence of the Service Provider's office required in the consignee's State	Yes
Name of states/ UT for geographical presence is required	Haryana
एडऑन /Addon(s)	
अतिरिक्त विवरण /Additional Details	
Designation	Watchman, Sweeper, Matron, Care Taker, Mess Helper, Electrician cum Plumber
Title for Optional Allowances 1	NA
Title for Optional Allowances 2	NA
Title for Optional Allowances 3	NA

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज /Additional Specification Documents

परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Number of Resources to be hired	अतिरिक्त आवश्यकता /Additional Requirement
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क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Number of Resources to be hired	अतिरिक्त आवश्यकता /Additional Requirement
1	Mamta Rani	125048,VPO KHARA KHERI DISTT. FATEHABAD	25	• Minimum daily wage (INR) exclusive of GST : 655.77 • Bonus (INR per day) : 0 • EDLI (INR per day) : 3.28 • EPF Admin Charge (INR per day) : 3.28 • Optional Allowances 1 (INR per day) : 0 • Optional Allowances 2 (INR per day) : 0 • Optional Allowances 3 (INR per day) : 0 • Estimated Number of Overtime Hours per Resource per Month : 0 • Remuneration per resource per hour for Overtime Hours (Including all applicable allowance etc & excluding GST) : 0 • ESI (INR per day) : 21.31 • Provident Fund (INR per day) : 78.69 • Number of working days in a month : 26 • Tenure/ Duration of Employment (in months) : 12

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 50% : The buyer can increase or decrease the contract quantity or contract duration up to 50 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 50 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 50 percent with the consent of the service provider

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

PM SHRI SCHOOL JAWAHAR NAVODAYA VIDYALAYA, KHARA KHERI

DISTT. FATEHABAD HARYANA

A.T.C. for Engagement of Manpower in JNV

1. The competent authority of this Office reserves the right to accept/ reject any bid on the basis of the past performance of the firm in this organization on any other ground. Such bidder whose past performance were unsatisfactory in this organization or any direct or indirect complains come in notice regarding short payment of wages as per norms / late payment of wages / not providing requisite documents to **JNV Khara Kheri**, the such bidder will be treated as disqualified.

2. The agency/firm should be registered under the 'Contract Labour (Regulation and Abolition Act, 1970) and Central Rules of 1971' made there under and have the EPF/EDLI and ESI Code Numbers in their possession.

3. Outsourcing agency must have EPF and ESI registration with the appropriate authority of the concerned State in which personnel is to be deployed and a copy of the certificate must be attached with the bid.

4. Outsourcing agency must have its registered Office in **Haryana State** within range of 50 km from where personnel are to be deployed.

5. Following documents/certificates must be appended along with the bid failing which bidder will be disqualified.

- a) GST Registration certificate / GSTIN.
- b) Income Tax return of last preceding 3 years.
- c) Turn over certificate for the last preceding 3 years.
- d) Self Certification from the Agency to the effect that the Agency has never been blacklisted by any Govt. Department or Private Organization. Declaration should be after date of tender publication.
- e) PSARA certificate issued by the Haryana State in which personnel are to be deployed (required for Security Guard bid).
- f) Labour license issued by competent authority for providing manpower services.
- g) Registration Certificate of ESIC, EPFO and copy of L.I.N.
- h) EPF and ESI registration in the concerned state in which personnel is to be deployed.
- i) Valid proof showing availability of registered office in the Haryana state in which personnel are to be deployed.
- j) Valid proof of exemption from EMD, if exemption availed.
- k) Experience Certificates.
- l) Copy of PAN Card.
- m) Valid ISO of Health & Safety, Environment Management , and Quality management system Certificate.
- n) Firm's 20 years' experience in the same field.
- o) The firm/Company's last three year's average turnover of more than 15 Crore.

- p) Affidavit on Rs. 100/- stamp with notary for not being blacklist from any Govt. Department/ PSU/ Ltd. Company/ etc
- q) Last three year continuous experience of the firm in the field of providing such services in Central Govt. establishments/Autonomous bodies/Corporations/reputed public funded organizations, if otherwise not exempted. Bidders will have to provide details in tabular form along with documentary proofs of such experience.
- r) The firm should have at least 350 labour registered under ESI and EPF The firm will produce latest ESI/EPF Challan for ascertaining the number of labour registered with the ESI/EPF Dep

- tt.
- s) The Service provider should attend the pre bid meeting at JNV Khara Kheri Distt.-Fatehabad (Haryana), as on between 10:00 AM to 02:00 PM. It is hereby made clear that only those technical bids will be taken into consideration for technical evaluation the bidder who will attend the pre bid meeting at JNV Khara Kheri Distt.-Fatehabad (Haryana) at stipulated date and Time.
 - t) The Firm's Valid Labour License for at least 50 persons in single contract.
 - u) The Firm with working experience of minimum 10 Years with Government Colleges, Government/Private Schools or in any related field.
 - v) The Firm should have MSME Certificate with Current Date after tender publication.
 - w) The Firm must attend Pre-bid meeting.

6. GST will not be paid as GST for engagement of manpower services in Educational Institutions is exempted vide Government of India, Ministry of Finance (Department of Revenue) Notification no. 12/2017-Central Tax (Rates) Dated 28.06.2017.

- 7. TDS, Income Tax, GST and other statutory deductions will be made as per rules from the payment.
- 8. The persons deployed by the service provider/Outsourcing Agency shall not claim any benefit compensation/absorption/regularization of services from JNV Khara Kheri under the provisions of the Industrial Disputes Act., 1947, or Contract Labour (Regulation & Abolition) Act, 1970 & 1971.
- 9. The Agency has to agree and undertake that in selecting the Personnel to be deployed, it shall give preference to the Personnel having experience in a fully residential educational system on said work. The Agency shall submit resumes of each outsourcing personnel to JNV Khara Kheri if required. **Further, the Agency shall give due consideration to the candidate recommended by JNV Khara Kheri and the same will be given first preference & this will be binding on the bidder. All existing manpower engaged in JNV Khara Kheri on a daily wage basis/ suggested by JNV Principal/NVS will be given preference in engagement if or otherwise found suitable. In case of any dispute of opinion between JNV Khara Kheri V/s Bidder, the decision of Principal, JNV Khara Kheri will be final & binding.** The deployment/arrangement of the personnel should be in such a manner that there shall be no violations of any leave Rules/terms and conditions agreed to by the parties.
- 10. Relaxation of age and qualification may be provided in the case of personnel who are ex- JNV employees, or dependent family members of deceased employees whose request for employment is pending in the Samiti.
- 11. JNV Khara Kheri may relax, case to case, in the academic qualification, working experience or in other conditions of the deployed personnels.
- 12. During the period of vacation or due to any administrative decision of the department, if any manpower is not retained by the JNV Khara Kheri or the number of manpower decided to decrease, the wages of such manpower will not be paid. It means wages will be paid only to that manpower whose services will be taken by the JNV Khara Kheri. Nos. of personnel may be increased or decreased as per the need of the JNV Khara Kheri.
- 13. JNV Khara Kheri is co-educational residential school where the behaviour of personnel plays a vital role. Personnel engaged should behave properly and maintain a high level of character attributes. It shall be the duty of the Agency to ensure that the deployed personnel shall conduct themselves in the most disciplined manner and in accordance with the Code of Conduct.

The agency shall be directly held liable for any acts of indiscipline of the Personnel. In the event, JNV Khara Kheri suffers any loss or damage on account of negligence, default wilful misconduct, or theft on the part of any of the deployed personnel, the Agency shall be liable to indemnify JNV Khara Kheri for the same.

14. JNV Khara Kheri shall be the final judge of the quality of the work and the satisfaction of the standards concerning this Agreement. JNV Khara Kheri shall have the right to prohibit the use of men/women and any tools, materials, or equipment which in his opinion, do not produce work or lead to a dissatisfactory performance by the Personnel.

15. The functional control over the deployed Personnel shall at all times during the term of this agreement, rest with JNV Khara Kheri.

16. The service provider will ensure that the deployed personnel shall not disclose to any person, any details of the office, operational process, technical know-how, security arrangements, and administrative / organizational matters as all are confidential/secret. If any loss is plunged to JNV Khara Kheri due to divulging/ disclosure of such matters by the deployed personnel, the service provider will bear such loss and responsibility of such omissions on the part of the personnel so deployed to the JNV Khara Kheri.

17. That the persons engaged shall not be below the age of 18 years and above the age of 45 years and they shall not interfere with the duties of the employees of the JNV Khara Kheri. In the case of an Ex-JNV employee or a compassionate ground case, the school may permit personnel aged beyond 45 years.

18. All financial responsibility/liability in respect of any injury caused to any of the deployed Personnel and or payment of their wages shall at all times be borne by the Agency. JNV Khara Kheri shall at no time, be held liable for the same. Further, JNV Khara Kheri shall not pay for any transportation, food, medical, accommodation, and other personal requirements in respect of any of the deployed personnel.
19. The Agency shall ensure that the deployed Personnel shall at no time claim any benefit of compensation/absorption, regularization of services from JNV Khara Kheri under the provision of The Industrial Relations Code, 2020 and/or the Occupational safety. The Agency shall ensure the execution of The Occupational Safety, Health and Working Conditions Code 2020, an undertaking to this effect shall be submitted by the agency to JNV Khara Kheri immediately upon deployment of personnel.
20. JNV Khara Kheri shall bear no liability whatsoever for any injury caused to any person during the performance of his/her duties or for payment towards any payment of wages.
21. The required manpower will have to be supplied by the agency within 7 days of the award of the contract. The penalties for non-deployment/absent/late joining of duties of personnel will be applicable as per GeM Service Level Agreement and Package.
22. The persons supplied by the Outsourcing Agency should not have any adverse Police records/criminal cases against them. The Agency should make adequate inquiries about the character and antecedents of the persons whom they are recommending. The service provider will also ensure that the personnel deployed are medically fit and will keep in the record a certificate of their medical fitness. Copy of Police Verification & Medical fitness of the concerned person may be submitted to JNV Khara Kheri by the Agency.
23. The Outsourcing Agency should submit resumes of each outsourcing persons and photocopies of testimonials and educational qualification certificates in support of their qualifications/age, etc. The Agency agrees to forthwith withdraw Personnel who are not found suitable by JNV Khara Kheri for any reason, upon receipt of such a request from JNV Khara Kheri, and arrange a suitable replacement for the same immediately.
24. The daily wage rates will be minimum wages fixed by the Govt. of India or Minimum wages of the concerned state whichever is higher. Minimum wages for Industrial workers will be applicable for outsourced personnels (Sweeper, Caretaker & Matron) and Minimum wages for watch & ward without arms will be applicable for outsourced Security Personnels engaged for JNV Khara Kheri as per the latest notification of the Central/concerned State Govt. changeable from time to time.
25. Service provider/Outsourcing Agency will have to pay the full wages as per rates mentioned in the Bid terms & conditions to the deployed personnel every month through a bank account only. Service providers will provide documentary evidence to the JNV Khara Kheri about this if required by the JNV Khara Kheri.
26. The Outsourcing Agency must give wage slips to the persons engaged by them regularly, ESI card should also be issued to all the persons. The service provider will provide copies of the pay slips and evidence regarding PF & ESI depositing to JNV Khara Kheri also while producing the wages bill.
27. The Outsourcing agency will be wholly and exclusively responsible for payment of wages to the persons deployed by it in compliance with all the statutory obligations under all related legislations as applicable to it, from time to time including Minimum Wages Act, Employees Provident Fund, ESI Act, etc. and JNV Khara Kheri shall not bear any liability for any expenditure whatsoever upon the persons deployed by the agency on account of any such obligations. The agency will be required to provide particulars of remittances/enrolment details of EPF and ESI contribution of its personnel so deployed in JNV Khara Kheri. The Agency will comply with all statutory provisions of law, rules, and regulations of Acts and keep JNV Khara Kheri informed about any amendment in the law from time to time.
28. If any amount is reportedly payable by the agency towards, wages allowances, and statutory dues in respect of personnel or any loss to JNV Khara Kheri property the same shall be adjusted after verification/confirmation, from the performance guarantee/ security deposit/EMD/ future payment with intimation to the agency. JNV Khara Kheri reserves the right to terminate the agreement without notice if the services offered are not found satisfactory / as per the agreement.
29. The Consideration payable to the Agency will be released, subject to the production of the certificate given by the agency and the production of documentary evidence towards EPF, ESI Service tax of the deployed personnel, for the previous month. Income Tax/GST etc. if any shall be deducted at source as per the relevant Act.
30. JNV Khara Kheri shall make payment of the Consideration to the Agency, through electronic transfer i.e. PFMS every month, on the production of the bill [in duplicate] along with proof of deposit of contribution of workers as regards the EPF, and ESI & Service tax, etc. TDS on Income Tax & GST shall be applicable as per the existing rate.
31. In case of Bid for Security Personnel, the Security Guard (without arms)/Chowkidar should wear the uniform neat, clean & ironed, while on duty, prescribed by the JNV Khara Kheri. The service provider will arrange the uniform for personnel deployed. The wearing of uniforms and name plates by the security persons of the contracting agency during duty hours is compulsory. The uniforms and names plates are to be provided by the contract agency at its own cost. Nothing will be borne by JNV Khara Kheri.
32. In case of Bid for Security Personnel, the Security guards shall work in three shifts of eight hours duration 24X7 days as specified in work order.
33. In case of Bid for Matron, the Age limit for Matron (Female) shall be between 35 to 55 years. Preference may be given to that matron who worked earlier in JNVs and whose work and conduct was found

and very good.

34. In case of Bid for Sweeper, engagement of at least 01 Female Sweeper is required in JNV Khara Kheri out of the total requirement of Sweepers.

35. The service provider/Outsourcing Agency has to provide Photo Identity Cards to the personnel so deployed to JNV Khara Kheri, for attending/ carrying out the work.

36. Work Scope of the personnel required is attached in Bid document, service providers are expected to go through the work scope.

37. Payments to the agency would be strictly on certification by the officer with whom outsourced personnel is attached to the effect that his/her services were satisfactory and as per actual attendance during a month.

38. The Contractor shall at all times indemnify JNV Khara Kheri against all claims, viz., damages or compensation under the provisions of Payment of Wages Act, 1936; Minimum Wages Act, 1948; Payment of Bonus Act 1965; Employer's Liability Act, 1938; the Workmen Compensation Act, 1923; Industrial Disputes Act, 1947; Maternity Benefit Act, 1961; Shops & Establishment Act, or any modification thereof or any other Labour laws relating thereto and rules made hereunder from time to time. JNV Khara Kheri will not own any responsibility in this regard. It shall be the liability of the Contractor to pay statutory minimum wages, ESI, EPF, Bonus, etc., and comply all other labour laws with report to the workers engaged / deputed to JNV Khara Kheri.

39. Payments to the agency would be strictly on certification by the authority of concerned JNV Khara Kheri with whom outsourced personnel is attached to the effect that his/her services were satisfactory and attendance as per the bill produced by the service provider.

40. Outsourcing Agency's Average Turnover of the last three years should be at least 50% amount of the bid value amount.

41. The General terms and conditions of the contract with the Agency, Code of Conduct for Personnel Engaged, Compliance with labour laws & sample format for a bill raised by the Agency area enclosed for information in the bid document.

42. The Agency shall deposit a performance security deposit (hereinafter referred to as "**PSD**") @ 3 % (three percent) of the contract value, in the form of Demand Draft, drawn in favour of Principal JNV, Khara Kheri covering the period of contract and 12 months thereafter. The PSD (Performance Security deposit) will be returned to the Agency after successful completion of the Term of the Agreement. However, in case of material breach or short comings in performance of its obligations (as contemplated in this Agreement) by the Agency, partial or entire amount of the PSD may be forfeited, depending upon the extent of the breach or default in performance of obligations.

43. The contract can be extended for a maximum of 6 months as per mutual consent of the buyer & bidder on the same terms & conditions mentioned in the bid document.

44. Outsourcing agency has to submit the GeM generated bill with the proof of payment of wages to deployed personnel for the concerned month along with the previous month's EPF and ESI payment receipt and challan copy in respect of deployed personnel. Firm will manage reliever personnel on the days of weekly off of personnel.

45. In case of the same/equal amount of rate in bid, the bid will be awarded as per the discretion of the Competent Authority of JNV Khara Kheri and no arbitration/dispute will be entertained and it will be final & binding to all bidders. JNV Khara Kheri reserves the right to select any bidder out of L1 bidders. The decision of the Competent Authority of JNV Khara Kheri will be final & binding.

46. Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

47. JNV Khara Kheri has the right to terminate the agreement for breach of the terms & conditions of the agreement. In the event, that the Agency defaults in timely payment/less payment of wages to the personnel deployed, JNV Khara Kheri shall issue a notice to the Agency informing it about such default and call upon it to rectify the same within 10 days of the date of issue of notice, failing which, JNV Khara Kheri shall either than exercising its right to terminate the agreement at its sole discretion, disburse the payment wages directly to the deployed Personnel and deduct/recover from the payment of agency or through the performance security deposit. Further, appropriate action/legal action can be initiated against the agency. Cost expenditure incurred therein on legal expenses shall be recovered from the agency /security deposit. In case of repeated violation of tender terms and conditions JNV Khara Kheri may cancel contract as per relevant clauses and carry out work of JNV through any other contractor of manpower agency working in JNV and expedite process of retender, if deemed fit. All disputes are subject to Fatehabad jurisdiction only.

48. The deployed Personnel shall be directly under the supervision, control and employment of the Agency, and in respect of work, they will be under the supervision of JNV on functional basis. It is specifically agreed between the Parties that such Personnel shall not have any claim against JNV for employment or regularization of their services against any temporary/permanent posts in JNV, by virtue of being deployed by the Agency to provide service in JNV.

49. The Agency agrees and undertakes that it shall, at its own cost, take comprehensive insurance cover with respect to the performance of work under this Agreement, and shall at all times comply with the statutory provisions of the relevant Applicable Law in force. Failure to maintain the insurance coverage shall be deemed a material breach of this Agreement and in such events, JNV shall have the right to terminate the Agreement.
50. The Parties herein agree that the Agency shall supply the manpower within 7 days of receipt of written requisition raised by the JNV. Further, the requirement for the number of Personnel can be increased or decreased by JNV at any time during the Term, by giving the Agency a written notice of 7 days to that effect.
51. It shall be the duty of the Agency to deploy necessary Personnel as required by JNV from time to time. For the purpose of clarity, the Agency shall ensure that deployment of the Personnel shall be in such a manner that at no point during the Term of this Agreement, there shall be any position vacant/unfilled. In the event, any of the deployed Personnel becomes unavailable due to resignation, sickness or other factors outside the control of JNV, the Agency shall be responsible for timely provision of adequately qualified replacements within a period of 2 days. Further, the Agency undertakes to provide a substitute well in advance, if there is any probability of any of the deployed Personnel leaving the job due to his/her own personal reasons. The payment in respect of the overlapping period of the substitute shall be the responsibility of the Agency.
52. The Agency shall ensure that the personnel supplied by it shall not have any adverse Police records/criminal cases against them. A certificate from the District Magistrate concerned is to be provided to JNV. Prior to recommending and deploying the personnel in JNV, the Agency shall make adequate enquiries about the character and antecedents of the Personnel. Further, the Agency shall ensure that such Personnel are medically fit and shall provide to JNV, a certificate of their medical fitness.
53. The Agency shall ensure that the deployed Personnel are trained and competent professionals for their respective jobs. The Agency agrees to forthwith withdraw Personnel who are not found suitable by JNV for any reason, upon receipt of such a request from JNV, and arrange a suitable replacement for the same immediately.
54. It is agreed between the Parties that the functional control over the deployed Personnel shall at all times during the Term of this Agreement, rest with JNV.
55. JNV shall be the final judge of the quality of the work and the satisfaction of the standards in respect to this Agreement. JNV shall have the right to prohibit the use of men/women and any tools, materials or equipment's which, in his opinion, do not produce work or lead to satisfactory performance by the Personnel.
56. The Agency shall issue and make available to every Personnel, their essentials, including without limitation, photo ID cards, Employee's State Insurance (ESI) cards etc.
57. The Agency shall ensure that the deployed Personnel shall not be below the age of eighteen (18) years and above the age of forty five (45) years. In case of Ex-JNV employee or compassionate case, JNV may permit personnel aged beyond 45 years.
58. The Agency shall keep itself available for being contacted by JNV, at all reasonable hours, any communication made via, including without limitation, text messages, whatsapp messages, phone calls, internet calls, e-mails, messages from special messenger, by JNV shall be acknowledged immediately, on the same day, upon its receipt.
59. Any discrepancies or disputes arising out on account of non-adherence to Applicable Laws and Labour laws would be the responsibility of the Agency solely, and JNV shall not be held responsible for the same.
60. The working hours for engaged personnel will be decided by the JNV and will be communicated to the agency from time to time. The contract duration may be increased or decreased as per requirement and the demand of personnel may also be vary as per the consignee demand uploaded with bid.
61. In the event of weekly off of the deployed personnel, the agency will provide the reliever accordingly.

PAYMENT TO THE DEPLOYED PERSONNEL

62. The Agency to remit the payment/wages of the deployed Personnel by 5th of every month, in their respective bank accounts. The Agency shall produce before JNV, the proof of the credited amount, before raising the next bill. Further, the Agency must give payment/wage slips to the deployed Personnel on a monthly basis and EPF statement on a quarterly basis. The payment to agency will be released subject to production of certificate given by the officer In-Charge and production of documentary evidence towards E.P.F., ESI and Service tax of its staff for the previous month. Tax if any shall be deducted at source as per the relevant Act.
63. The agency will be wholly and exclusively responsible to comply with the all statutory obligations under all related legislations as applicable from time to time including Minimum Wages Act, Empl

Employees Provident Fund, ESI Act etc. and JNV shall not incur any liability for any expenditure whatsoever on the persons deployed by the agency on account of any obligation/ breach / deviation of the obligation. The Agency will comply with all statutory provisions of law, rules and regulations enforce and shall keep informed JNV regarding the amendment in the relevant Laws from time to time.

64. Additionally, the Agency shall be required to provide the proof of depositing the particulars of statutory deduction of EPF & ESI of the deployed Personnel to the DDO of JNV concerned for record and future reference. The Agency shall at all times comply with all statutory provisions of Applicable Laws and keep JNV informed about any amendment in same, from time to time.

65. Payments to the agency would be strictly on certification by the officer with whom outsourced personnel is attached to the effect that his services were satisfactory and attendance as per the bill preferred by the service provider.

66. In the event, the Agency defaults in timely payment of the payment/wages of the deployed Personnel, JNV shall issue a written notice to Agency informing it about such a default and call upon it to cure the same within

10 days from the date of issue of notice, failing which, JNV shall, other than exercising its right to terminate the Agreement for legal consequences, at its sole discretion, disburse the payment/wages directly to the deployed Personnel and deduct/recover from the payment of agency or through the performance security deposit. JNV has the right to terminate the agreement for breach of the terms & conditions of the agreement. Further, appropriate action / Legal action can be initiated against the agency. Cost / expenditure incurred therein shall be recovered from the security deposit.

67. That if any amount is reportedly payable by the agency towards, wages, allowances and statutory dues in respect of personnel or any loss to (JNV Khara Kheri) property, the same shall be adjusted after verification/Confirmation from the Performance guarantee /security deposit / EMD / future payment with intimation. JNV Khara Kheri reserves the right to terminate the agreement without notice, if the services offered are not as per agreement.

68. JNV shall bear no liability whatsoever for any financial or any injury caused to any of the personnel during the course of performance of its duties or for payment towards any payment/wages.

69. Any and all financial responsibility/liability in respect of financial or any injury caused to any of the deployed Personnel and/or payment of their wages/payment shall at all times be borne by the Agency, and JNV shall at no time, be held liable for the same. Further, JNV shall not pay for any transportation, food, medical and other personal requirements in respect of any of the deployed Personnel.

70. The Agency shall ensure that the deployed Personnel shall at no time claim any benefit/compensation/absorption/regularization of services from JNV under the provision of Industrial Relations Code, 2020 and/or the Occupational Safety, Health and Working Conditions Code, 2020. The Agency shall ensure the execution of an undertaking to this effect by the deployed Personnel, and shall submit the same to JNV immediately upon deployment of such personnel.

71. The Agency shall ensure that the deployed Personnel shall not divulge or disclose to any person, any details of office confidential knowledge or information of the of JNV, including operational processes, technical know-how, security arrangements, administrative/ organizational matters, and any and all other organizational secrets or practices and procedures which is not publicly available thereby making it of confidential/secret nature ("Confidential Information"). If any loss is plunged to JNV due to divulge/disclosure of such Confidential Information by any of the deployed Personnel, the Agency shall take responsibility for the same and indemnify JNV for the loss incurred by it due to such divulgence of Confidential Information.

72. The Consideration payable to the Agency will be released, subject to production of certificate given by the agency and production of documentary evidence towards EPF/ESI/Service tax of the deployed personnel, for the previous month. Tax if any shall be deducted at source as per the relevant Act.

73. In case of Absence of any working day, the monthly remuneration will be deducted as per the following formula:

$$\text{Where A} = \frac{\text{Monthly Remuneration} \times \text{No. of days absence}}{\text{No. of Days in Month}}$$

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

4. Service & Support

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the

state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

5. **Generic**

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

Principal
PM SHRI School Jawahar Navodaya Vidyalaya
Khara Kheri
FATEHABAD
HARYANA
.

6. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

PRINCIPAL JAWAHAR NAVODAYA VIDYALAYA KHARA KHERI FATEHABAD
payable at
AGROHA HISAR
.

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

7. **Forms of EMD and PBG**

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

PRINCIPAL JNV KHARA KHERI FATEHABAD

. The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

8. **Generic**

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

9. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

10. **Swachh Bharat Mission(SBM)**

Maintenance of Electrical Works

The shift operator shall

- 1.Take help of trained and certified workers to install, maintain, or repair electrical equipment.
- 2.Ensure that live-wire work is conducted by trained workers.
- 3.Keep the minimum approach distances outlined for specific live line voltages.
- 4.Ensure proper use of special safety equipment and procedures when working near, or on, exposed energized parts of an electrical system.
- 5.Stay at least 10 feet (3 meters) away from overhead wires during on-site activities.
- 6.Never operate electrical equipment while you are standing in water.
- 7.If working in damp locations, inspect electric cords and equipment to ensure that they are in good condition.

Note :Specific work item details shall be prescribed by Authority before seeking proposals on AMC .

11. **Service & Support**

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

12. **Service & Support**

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

13. **Purchase Preference (State)**

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

14. **Purchase Preference (Centre)**

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 15% of total value.

15. **Payment**

PAYMENT OF SALARIES AND WAGES: Service Provider is required to pay Salaries / wages of contracted staff deployed at buyer location first i.e. on their own and then claim payment from Buyer alongwith all statutory documents like, PF, ESIC etc. as well as the bank statement of payment done to staff.

16. **Past Project Experience**

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.**Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

17. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

PRINCIPAL JAWAHAR NAVODAYA VIDYALAYA KHARA KHERI FATEHABAD

payable at
AGROHA HISAR

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

18. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Fixed Deposit Receipt also (besides PBG which is allowed as per GeM GTC). FDR should be made out or pledged in the name of

PRINCIPAL JNV KHARA KHERI FATEHABAD

A/C (Name of the Seller). The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of Security Deposit, the FDR will be released in favour of bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Successful Bidder has to upload scanned copy of the FDR document in place of PBG and has to ensure delivery of hard copy of Original FDR to the Buyer within 15 days of award of contract.

19. **Service & Support**

The Service Provider is required to have at least 40 % of the required manpower on service provider's payroll for at least one year. Necessary documents relating to such manpower will be uploaded by the bidder for verification of the buyer. Such manpower will be part of total manpower to be provided by the Service Provider in case he gets the contract against this bid.

20. **Generic**

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be

determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला

सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---